

responding to oppositions, and of preparing for and appearing at the hearing. No oppositions have been filed, so the Court will reduce the amount to one additional hour for preparing for and appearing at the hearing. The total hours reasonably incurred on these motions is therefore 7 hours. Costs incurred for filing each of the two discovery motions (\$120.00 total) will also be imposed.

Defendant's Motion to Compel Responses to Form Interrogatories, Set One and Special Interrogatories, Set One is **GRANTED**. Plaintiffs' Motion to Compel Responses to Requests for Production, Set One is **GRANTED**. Sanctions in the amount of \$1,590.00 are imposed against Plaintiff pursuant to CCP §§ 2030.290(c) and 2031.300(c). Proposed orders have been lodged and will be modified and executed.

Proposed Tentative Ruling on Motion to Compel Response to Request for Statement of Damages: Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel a response to Defendant's Request for Statement of Damages, served by email on June 14, 2024. Plaintiff Mary Kennedy has not provided a responsive statement to date. The motion is unopposed.

Merits of Motion: Code of Civil Procedure section 425.11(b) provides that in a personal injury action, the defendant may at any time request a statement of damages, which plaintiff shall respond to within 15 days. In the event a response is not served, the defendant, on notice to plaintiff, may petition the court to order plaintiff to serve a responsive statement. Here, the evidence establishes that Defendant requested a statement of damages on June 14, 2024. To date, no responsive statement has been provided. Defendant filed the instant properly noticed motion, and no opposition has been filed. Defendant is entitled to the relief requested.

Sanctions: Defendant requests sanctions but does not provide authority for the imposition of sanctions under CCP § 425.11. Unlike the Civil Discovery Act, which provides for fee shifting in discovery disputes pursuant to CCP §§ 2030.290(c) and 2031.300(c), and other sections, CCP § 425.11 does not provide for sanctions. The Court therefore declines to impose sanctions on this motion.

Defendant's Motion to Compel Response to Request for Statement of Damages is **GRANTED**. No sanctions are imposed. A proposed order has been lodged and will be modified and executed.

IN RE: KLOTZER

Case Number: 24CV-0205186

Tentative Ruling on Petition for Change of Name: Petitioner Gavin Nicholas Doty aka Gavin Nicholas Klotzer seeks to change his name to Gavin Nicholas Klotzer. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

MATLOCK VS. WOLF SCOOTERS, LLC, ET AL.

Case Number: CVPO22-0199209

Tentative Ruling on Motion to Be Relieved as Counsel: Jillian E. Stanley of Quarles & Brady LLP moves to be relieved as counsel for Defendant Bird Rides, Inc. The moving papers do not address the fact that the matter is currently stayed due to the Notice of Stay of the Proceedings which was filed on March 15, 2024. While the Court continues to monitor the case pending the bankruptcy, the Court has not been presented with clear legal authority that would allow the Court to hear such a motion while the matter is stayed due to bankruptcy.

Accordingly, the Court **DECLINES** to issue a ruling on this motion and the matter is dropped from calendar. Counsel may re-notice the motion when and if the stay is lifted. **No appearance is necessary on today's Law & Motion calendar. The Court will call the matter at 9:00 a.m. as it is on calendar for review regarding status of the bankruptcy case.**